

Redline – Newcastle Core Zoning Code

v0.14-draft → v0.15-draft · changed passages only

How to read this redline. Struck-through text was removed; red text was added immediately after it. Only the TEXT of the Code is compared – natively rendered layout (district spreads, Type plates, district maps) and images are not shown here.

33 changed passage(s) shown below, each under its Section location. Unchanged text is omitted.

Article 2 District Standards › 2. LOTS › c. GENERAL

C. GENERAL

1. All newly created lots must about a ~~Street or Road~~Thoroughfare of a Type defined in Article 3 Section 2 (~~Street & Road~~(Thoroughfare Types). The ~~Street or Road~~Thoroughfare must conform to the standards of Article 3.
 - a. Newly created lots shall retain the District designation of the original lot.
 - b. New insular lots are prohibited, unless created with a minimum deeded 24 ft wide right-of-way to a ~~Street or Road~~Thoroughfare as defined in Article 3.
 - i. Newly created insular lots wholly held in a non-public conservation easement may reduce the right-of-way with access standard to 10 ft for non-vehicular access. Subsequent removal of the lot from the conservation easement shall create a legal non-conformity.
 - c. New flag lots are prohibited.

Article 2 District Standards › 2. LOTS › c. GENERAL

4. Lots must be platted as follows:
 - a. The front lot line must be located along the primary road, or water body.
 - b. For newly created corner lots or through lots that about two roads, the primary frontage shall be along the ~~Street or Road~~Thoroughfare of the highest Type per Article 3 Section 2 hierarchy (Streets take precedence over Roads; within each family, Types with lower codes – e.g., S1 over S2 – take precedence).

D. NONCONFORMING LOTS

Article 2 District Standards › 5. CIVIC DISTRICT › b. APPLICABILITY

ARTICLE 3 STREETS, ROADS & DRIVEWAYS~~THOROUGHFARES~~

1. GENERAL

Article 3 Thoroughfares › 1. GENERAL › a. PURPOSE

1. To establish a context-based classification of streets, roads, and driveways calibrated to the Districts of this Code.
2. To require that new streets, roads, and driveways are designed in a manner that supports and reinforces the character of the District in which they are located.
3. To provide a method for classifying existing ~~streets and roads~~thoroughfares into the ~~Street/~~ReadThoroughfare Types defined herein.
4. To resolve design conflicts between vehicular and pedestrian movement in favor of the pedestrian within urban Districts, and in favor of the vehicle within rural Districts.

5. To distinguish between the form and character of a ~~street or road~~thoroughfare (regulated by this Article) and its statutory ownership and maintenance status (governed by Title 23 of the Maine Revised Statutes).
6. To absorb, calibrate, and supersede the Newcastle Road, Driveway, and Entrance Ordinance adopted November 3, 2020, which is repealed concurrent with the adoption of this Article.

Article 3 Thoroughfares › 1. GENERAL › b. APPLICABILITY

1. Unless otherwise specified, this Article is applicable to all streets, roads, and driveways throughout the Town of Newcastle.
2. Applies to each new street, road, driveway, and entrance that connects to a public way, and to the alteration, enlargement, reconstruction, or discontinuance of an existing street, road, driveway, or entrance on or after the effective date of this Article.
3. Applies to the classification of existing ~~streets and roads~~thoroughfares in accordance with Section 5 of this Article.
4. If a permit or approval is required under this Article, no earth moving or construction may occur prior to obtaining that permit or approval.

Article 3 Thoroughfares › 1. GENERAL › e. RELATIONSHIP TO OTHER STANDARDS

4. All development activity must comply with relevant Federal and State law and regulations. Where there is a conflict between this Article and the standards of a Federal or State law, Federal or State law supersedes the standards of this Article.

2. STREET & ROADTHOROUGHFARE TYPES

A. PURPOSE

1. To ~~establish a system of named Street and Road Types whose standards reinforce the character of each District.~~
2. To ~~enable a single classification — the Type — to serve both as a design specification for new construction and as a designation for existing streets and roads.~~
3. To establish a system of named Thoroughfare Types whose standards reinforce the character of each District.
4. To enable a single classification — the Type — to serve both as a design specification for new construction and as a designation for existing thoroughfares.
5. To order the public realm on a continuum from most urban (Main Street) to most rural (Rural Road and Rural Lane), with Driveway designated as the smallest form of vehicular access.

B. APPLICABILITY

1. Every ~~street and road~~thoroughfare within the Town of Newcastle is assigned one Type from the system in this Section, in accordance with Section 5 (Classification of Existing ~~Streets & Roads~~)Thoroughfares) or Section 6 (New ~~Streets & Roads~~)Thoroughfares).
2. Every Driveway is regulated as a Driveway under Section 7, calibrated by the District in which the driveway is located.

C. GENERAL

1. The ~~Street/Road~~Thoroughfare Types are organized in two families:
 - a. The **Street family** (S1 through S5) contains Types whose character emphasizes pedestrian comfort, defined frontages, and lower design speeds. Street Types are intended for the more urban Districts.
 - b. The **Road family** (R1 through R5) contains Types whose character emphasizes vehicular movement, working landscapes, and higher design speeds. Road Types are intended for the more rural Districts and for state-aid highway corridors.

Article 3 Thoroughfares › 2. THOROUGHFARE TYPES › c. GENERAL

3. Within Types S1 through S5 and R1 through R5, pedestrian comfort considerations are weighted as follows: in Types S1 through S4, pedestrian comfort is a primary consideration. In Types S5 (Alley), R1, R2, and R3, pedestrian comfort is a secondary consideration but is not eliminated. In Types R4 and R5, vehicular movement is the primary consideration consistent with Maine Department of Transportation classification of the corridor.
4. The full design standards for each Type are stated on that Type's page, which follows in this Section. The sight-distance standards of Section 8 and the construction specifications of Section 11 are referenced on each Type's page and stated in full in those Sections.
5. A full page for each numbered Type (S1 through S5 and R1 through R5) follows in this Section. Each Type page states that Type's description, purpose, applicable standards, target Districts, character, and design standards, and includes an illustrative cross-section showing the representative arrangement and typical widths of the Type's right-of-way components. The cross-section illustration is representative; the design standards stated on the page govern. No Type page is provided for the Driveway (D), which is not a ~~Street or Road~~Thoroughfare Type and is regulated under Section 7.

Article 3 Thoroughfares › 2. THOROUGHFARE TYPES › d. DRIVEWAY (D)

3. **Calibration.** Driveway standards in Section 7 are calibrated by the District in which the driveway is located.

3. STREET & ROADTHOROUGHFARE STANDARDS

A. PURPOSE

Article 3 Thoroughfares › 3. THOROUGHFARE STANDARDS › b. APPLICABILITY

B. APPLICABILITY

1. The design standards stated on the Type pages in Section 2, together with the rules of general application in this Section, apply to the design and construction of new ~~streets and roads~~thoroughfares under Section 6, and to the modification of existing ~~streets and roads~~thoroughfares under Section 14.
2. Sight distance standards (Section 8) and construction specifications (Section 11) are referenced on each Type's page but stated in full in their respective Sections.

Article 3 Thoroughfares › 3. THOROUGHFARE STANDARDS › f. REQUIRED COMPONENTS BY CONTEXT

F. REQUIRED COMPONENTS BY CONTEXT

1. This Subsection states the components that shall be provided on a ~~Street or Road~~Thoroughfare regardless of whether a component's dimension is a Build-To Standard (Section 3.C.2) or a minimum. These requirements are administered by the Code Enforcement Officer on permits the Officer issues under Section 13.C, and by the Planning Board on Subdivision and Master Plan review.
2. **Sidewalk.** A sidewalk shall be provided:
 - a. on both sides of a Street in D5 Village Business and D6 Town Center;
 - b. on at least one side of a ~~Street or Road~~Thoroughfare where any part of the frontage lies within ¼ mile, measured along the public way, of a school, the Town Office, the library, the post office, a public park or public landing, or a place of public assembly;
 - c. on at least one side where the segment connects to an existing sidewalk; and
 - d. on at least one side of a new Street that will serve more than [12] dwelling units.

Article 3 Thoroughfares › 3. THOROUGHFARE STANDARDS › f. REQUIRED COMPONENTS BY CONTEXT

4. **Planting strip and street trees.** A planting strip with street trees shall be provided on any segment on which a sidewalk is required under Section 3.F.2, unless the Code Enforcement Officer finds in writing that a planting strip is infeasible because of a utility conflict, insufficient right-of-way remaining after the safety-critical widths are met, or ledge.
 5. **Connectivity.** A new Street shall connect to any stubbed street abutting the parcel and shall provide a stub to each abutting developable parcel where a future through-connection is feasible.
 6. **Trail connection.** Where an adopted Town trail, path, or sidewalk plan shows a connection across or along the parcel, the ~~Street or Road~~ **Thoroughfare** shall accommodate that connection.
 7. **Road-family limit.** Types R1 through R5 are exempt from Sections 3.F.2 through 3.F.4 except where the segment abuts D5 or D6 frontage.
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Article 3 Thoroughfares › 4. OWNERSHIP CATEGORIES › a. PURPOSE

A. PURPOSE

1. To distinguish the form and character of a street or road, regulated as a Type under this Article, from its statutory ownership and maintenance status.
2. To recognize the four ownership categories that exist under Maine law and Town practice, and to acknowledge that any Street or Road Type may, in principle, exist under any of these categories.
3. To distinguish the form and character of a thoroughfare, regulated as a Type under this Article, from its statutory ownership and maintenance status.
4. To recognize the four ownership categories that exist under Maine law and Town practice, and to acknowledge that any Thoroughfare Type may, in principle, exist under any of these categories.

B. APPLICABILITY

1. Every street and road within the Town of Newcastle is assigned, in addition to its Type, one Ownership Category from this Section.
2. The Ownership Category of a street or road is recorded on the District Map alongside its Type.
3. Every thoroughfare within the Town of Newcastle is assigned, in addition to its Type, one Ownership Category from this Section.
4. The Ownership Category of a thoroughfare is recorded on the District Map alongside its Type.

C. CATEGORIES

1. **Town Way.** A street or road formally accepted by the Town under 23 MRSA §3022 by vote at Town Meeting. The Town maintains a Town Way and bears responsibility for repairs.
2. **Public Easement.** A street or road over which the public holds an easement under 23 MRSA §3021, sometimes referred to historically as a “private way.” The public has the right of access but the Town does not bear maintenance responsibility.
3. **Private Road.** A street or road in fully private ownership over which no public access right exists. Maintenance is the responsibility of the private owner or association.
4. **State Highway.** A street or road owned and maintained by the State of Maine through the Maine Department of Transportation. US Route 1 within Newcastle is a State Highway. State Highways are subject to the coordination protocol in Section 12.
5. **Town Way.** A thoroughfare formally accepted by the Town under 23 MRSA §3022 by vote at Town Meeting. The Town maintains a Town Way and bears responsibility for repairs.
6. **Public Easement.** A thoroughfare over which the public holds an easement under 23 MRSA §3021, sometimes referred to historically as a “private way.” The public has the right of access but the Town does not bear maintenance responsibility.
7. **Private Road.** A thoroughfare in fully private ownership over which no public access right exists. Maintenance is the responsibility of the private owner or association.

8. **State Highway.** A thoroughfare owned and maintained by the State of Maine through the Maine Department of Transportation. US Route 1 within Newcastle is a State Highway. State Highways are subject to the coordination protocol in Section 12.

D. RELATIONSHIP TO TYPE

1. The Type of a ~~street or road~~thoroughfare describes its form, character, and design standards. The Ownership Category describes its statutory ownership and maintenance status. The two designations are independent: a Main Street (S1) may be a Town Way, a Public Easement, or a State Highway; a Rural Road (R2) may be a Town Way or a Private Road.
2. Where the standards of this Article conflict with the standards or practices applicable to a particular Ownership Category — for example, with MaineDOT design standards for a State Highway, or with the terms of a Public Easement instrument — the provisions of Section 12 (Coordination with MaineDOT) and Section 4.E (below) apply.

Article 3 Thoroughfares › 4. OWNERSHIP CATEGORIES › e. PROCESS FOR CHANGING OWNERSHIP

1. The acceptance of a Private Road or Public Easement as a Town Way is a Town Meeting matter and is processed under Article 8 §20 Land Conveyance.
2. Discontinuance of a Town Way is processed under 23 MRSA §3026-A and Article 8 §27 Planning Board.
3. Changes in Ownership Category do not by themselves change the Type of a ~~street or road~~thoroughfare. The Type is set under Section 5 or Section 6 and is reviewed only under Section 14.B (Reclassification).

5. CLASSIFICATION OF EXISTING STREETS & ROADS THOROUGHFARES

A. PURPOSE

1. ~~To assign, at adoption of this Article, a Type and an Ownership Category to every existing street and road within the Town of Newcastle.~~
2. ~~To provide a process for reviewing and updating the classification of a street or road over time.~~
3. ~~To assign, at adoption of this Article, a Type and an Ownership Category to every existing thoroughfare within the Town of Newcastle.~~
4. ~~To provide a process for reviewing and updating the classification of a thoroughfare over time.~~

B. APPLICABILITY

1. ~~Applies to every named street and road segment within the Town of Newcastle at the effective date of this Article.~~
2. ~~A street or road segment is defined as the length of a named street or road between two principal intersections.~~
3. ~~Applies to every named thoroughfare segment within the Town of Newcastle at the effective date of this Article.~~
4. ~~A thoroughfare segment is defined as the length of a named thoroughfare between two principal intersections.~~

C. INVENTORY OF EXISTING STREETS AND ROADS THOROUGHFARES

1. The Town shall maintain an Inventory of Existing Streets and Roads (Exhibit 3.1) that, for every street and road segment in Newcastle, assigns the segment a Street/Road Type and records descriptive information about the segment.
2. **Classification (binding).** For each segment — identified by its name and termini — the Inventory assigns a Street/Road Type. The Type assignment is the regulatory classification of the segment and is adopted as part of this Code. The standards applicable to a segment are the standards of its assigned Type (Section 2), together with the rules of general application in Section 3. A Type assignment may be changed only under Section 5.E (Reclassification).

3. The Town shall maintain an Inventory of Existing Thoroughfares (Exhibit 3.1) that, for every thoroughfare segment in Newcastle, assigns the segment a Thoroughfare Type and records descriptive information about the segment.
4. **Classification (binding).** For each segment — identified by its name and termini — the Inventory assigns a Thoroughfare Type. The Type assignment is the regulatory classification of the segment and is adopted as part of this Code. The standards applicable to a segment are the standards of its assigned Type (Section 2), together with the rules of general application in Section 3. A Type assignment may be changed only under Section 5.E (Reclassification).
5. **Recorded information (reference).** The Inventory also records the following for each segment, for reference and administration. This information is approximate, does not itself establish or limit any standard or dimension, and may be updated by the Town to reflect current conditions; where a recorded entry conflicts with the actual field condition or with a controlling standard of this Code, the actual condition or the controlling standard governs.
 - a. Ownership Category, as determined under Section 4.

Article 3 Thoroughfares › 5. CLASSIFICATION OF EXISTING THOROUGHFARES › c. INVENTORY OF EXISTING THOROUGHFARES

- e. MaineDOT functional classification, where the segment is a state-aid road.
- f. Notes on nonconformity, where the segment does not currently meet the standards of its assigned Type (Section 14).
4. **Street & Road**Thoroughfare Type Map.** The ~~Street & Road~~Thoroughfare Type Map (Exhibit 3.2) illustrates the Type assigned to each segment. It is generated from the Inventory and is provided for convenience; where the Map and the Inventory differ, the Inventory governs.
5. The initial Inventory is adopted concurrently with this Article. A change to a segment's assigned Type is processed under Section 5.E (Reclassification); recorded information under paragraph 3 may be updated by the Town without amendment of this Code.

Article 3 Thoroughfares › 5. CLASSIFICATION OF EXISTING THOROUGHFARES › d. CLASSIFICATION RUBRIC

e. ****Tie-breaker.**** Where the above tests produce conflicting indications, the Planning Board determines the Type after a public hearing, considering the long-term character intent of the abutting District(s).

~~[native-Typst block removed — see rendered Code]~~ **[native-Typst block added or updated — current version rendered below]**

TABLE 3.4 DEFAULT TYPE BY DISTRICT (CLASSIFICATION GUIDE)

District	Default Thoroughfare Type(s)
D1 Rural	R2 Rural Road; R3 Rural Lane on low-volume segments; R1 Connector Road on transition segments
D2 Neighborhood Residential	S3 Neighborhood Street; S4 Lane on mid-block segments; R1 Connector Road on edge segments
D3 Neighborhood Business	S3 Neighborhood Street; S2 Village Street on center segments
D4 Village Residential	S3 Neighborhood Street; S4 Lane on mid-block segments; S2 Village Street on center segments
D5 Village Business	S2 Village Street; S1 Main Street on designated segments; S4 Lane internal to blocks
D6 Town Center	S1 Main Street; S4 Lane and S5 Alley internal to blocks
SD-Historic	S2 Village Street center; S3 Neighborhood Street outside center
SD-Conservation	R2 Rural Road; R3 Rural Lane on low-volume segments
SD-Highway Commercial	R4 Highway Commercial
SD-Rural Highway	R5 Rural Highway
SD-Campus	S3 Neighborhood Street; S4 Lane and S5 Alley internal
SD-Marine	S3 Neighborhood Street; R1 Connector Road on access segments
SD-Fabrication	S3 Neighborhood Street; S5 Alley internal
SD-Civic	Type follows adjacent District

E. RECLASSIFICATION

- The Type assigned to an existing ~~street or road~~thoroughfare segment may be changed only by:
 - Amendment of the segment's Type assignment in the Inventory (Section 5.C) under Article 8 §21 (Zoning Amendment), processed as a Town Meeting matter; or
 - Reclassification under this subsection where, in connection with a proposed alteration or improvement, the abutting District has been amended or the built character has demonstrably changed such that the current Type no longer reflects either.

Article 3 Thoroughfares › 5. CLASSIFICATION OF EXISTING THOROUGHFARES › e. RECLASSIFICATION

- Reclassification petitions are reviewed by the Planning Board at a public hearing with abutter notice under Article 8 §5. The Planning Board makes a written recommendation to the Board of Selectmen, who may place the petition on the warrant of the next Town Meeting.

6. NEW STREETS & ROADS THOROUGHFARES

A. PURPOSE

- To establish the process and standards for the design and construction of new ~~streets and roads~~thoroughfares within the Town of Newcastle.

B. APPLICABILITY

- Applies to:
 - ~~The construction of any new street or road within the Town.~~
 - ~~Substantial reconstruction of an existing street or road, where the reconstruction alters the cartway width, right-of-way width, or fundamental design speed.~~
 - The construction of any new thoroughfare within the Town.
 - Substantial reconstruction of an existing thoroughfare, where the reconstruction alters the cartway width, right-of-way width, or fundamental design speed.
- Does not apply to:

- a. General maintenance of an existing ~~street or road~~, **thoroughfare**, including patching, resealing, restriping, and shoulder reshaping that does not alter the standards listed in Section 6.B.1.b.
- b. Driveway construction or alteration, which is regulated under Section 7.

C. TYPE ASSIGNMENT AT TIME OF DESIGN

1. The Type of a new ~~street or road~~, **thoroughfare** must be assigned at the time of design, before construction drawings are prepared.
2. The Type assignment is made by the applicant in consultation with the Code Enforcement Officer and Road Commissioner, based on the abutting District, the intended built character, and the Default Type by District guide in Table 3.4.
3. ~~Where the new street or road serves a Subdivision, the Type assignment is reviewed and approved by the Planning Board as part of the Subdivision Plan under Article 8 §12.~~
4. ~~Where the new street or road is a state-aid road, MaineDOT coordination is required under Section 12 prior to Type assignment.~~
5. **Where the new thoroughfare serves a Subdivision, the Type assignment is reviewed and approved by the Planning Board as part of the Subdivision Plan under Article 8 §12.**
6. **Where the new thoroughfare is a state-aid road, MaineDOT coordination is required under Section 12 prior to Type assignment.**

D. DETERMINATION OF COMPONENTS AND WIDTHS

1. In approving a new ~~Street or Road~~, **Thoroughfare**, the Planning Board may require components and widths drawn from within the assigned Type's stated ranges and options in Section 2 in order to serve one or more of the following objectives:
 - a. pedestrian safety and comfort consistent with Section 2.C.3;
 - b. continuity of the street, sidewalk, and block network;

Article 3 Thoroughfares › 6. NEW THOROUGHFARES › e. DESIGN STANDARDS

E. DESIGN STANDARDS

1. The design of a new ~~street or road~~, **thoroughfare** must conform to the design standards stated for the assigned Type on that Type's page in Section 2, to the rules of general application in Section 3, and to the construction specifications of Section 11, except as modified under Section 12 for state-aid roads.
2. Engineering plans must be prepared and stamped by a Maine-licensed civil engineer.
3. Plans must be reviewed and approved by the Road Commissioner prior to issuance of a Zoning Permit for ~~street or road~~, **thoroughfare** construction.

F. CONSTRUCTION AND INSPECTION

Article 3 Thoroughfares › 6. NEW THOROUGHFARES › g. ACCEPTANCE AS A TOWN WAY

G. ACCEPTANCE AS A TOWN WAY

1. ~~A new street or road constructed under this Section is presumed to remain a Private Road unless and until it is formally accepted as a Town Way by vote at Town Meeting under 23 MRSA §3022.~~
2. ~~The cost of any improvements required to bring the street or road up to current Town Way acceptance standards shall not be borne by the Town.~~
3. ~~The Town is not obligated to accept any privately constructed street or road as a Town Way.~~
4. **A new thoroughfare constructed under this Section is presumed to remain a Private Road unless and until it is formally accepted as a Town Way by vote at Town Meeting under 23 MRSA §3022.**
5. **The cost of any improvements required to bring the thoroughfare up to current Town Way acceptance standards shall not be borne by the Town.**
6. **The Town is not obligated to accept any privately constructed thoroughfare as a Town Way.**

7. DRIVEWAYS

Article 3 Thoroughfares › 9. INTERSECTIONS › a. PURPOSE

A. PURPOSE

1. To establish geometric standards for intersections between ~~Streets and Roads~~ Thoroughfares, calibrated to the Type of each intersecting facility.

B. APPLICABILITY

Article 3 Thoroughfares › 9. INTERSECTIONS › c. GENERAL

C. GENERAL

1. The curb return radius at an intersection of two ~~Streets or Roads~~ Thoroughfares is determined by the more urban Type of the two intersecting facilities, per the curb return radius stated on each Type's page in Section 2.
 2. At intersections between a Street Type and a Road Type, the curb return radius is determined by the Road Type, except where the Road Type connects directly to a D5 or D6 District frontage, in which case the Street Type's radius applies.
 3. Maximum grade within 75 ft of any intersection shall not exceed 2%.
 4. Minimum angle of intersection between any two ~~Streets or Roads~~ Thoroughfares shall be 75 degrees, with 90 degrees preferred.
 5. Minimum radius along the right-of-way edge at intersections is 10 ft for Streets and 15 ft for Roads.
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Article 3 Thoroughfares › 10. WATER MANAGEMENT › a. PURPOSE

A. PURPOSE

1. To provide for the conveyance, control, and disposal of surface waters in the right-of-way of ~~Streets and Roads~~ Thoroughfares, while protecting downstream water quality and aquatic habitat.

B. APPLICABILITY

1. Applies to all new ~~Streets and Roads~~ Thoroughfares under Section 6 and to the substantial reconstruction of existing ~~Streets and Roads~~ Thoroughfares.

C. GENERAL

1. ~~Streets and Roads~~ Thoroughfares shall be designed to provide for the conveyance, control or disposal of surface waters including but not limited to the installation of ditches, culverts, catch basins, and piping systems consistent with their Type.

D. CULVERTS

1. Culverts are required for the proper movement and removal of water adjacent to ~~Streets and Roads~~ Thoroughfares to ensure safe travel conditions and protect the integrity of the road surface and subsystem.
 2. Culverts shall have the following standards:
 - a. Culverts must extend beyond the combined width of the traveled way and shoulders by 18 inches on both sides.
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Article 3 Thoroughfares › 10. WATER MANAGEMENT › f. GRADE CHANGES

F. GRADE CHANGES

1. ~~Streets and Roads~~ Thoroughfares shall be constructed so that all changes in grade shall be connected by vertical curves in order to provide a minimum stopping sight distance per Table 3.2.

11. CONSTRUCTION STANDARDS

Article 3 Thoroughfares › 11. CONSTRUCTION STANDARDS › a. PURPOSE

A. PURPOSE

1. To provide engineering specifications for the construction of ~~Streets and Roads~~ **Thoroughfares** consistent with their Type.

B. APPLICABILITY

1. Applies to the construction of new ~~Streets and Roads~~ **Thoroughfares** under Section 6 and to the substantial reconstruction of existing ~~Streets and Roads~~ **Thoroughfares** under Section 14.
2. Construction of state-aid roads (R4 and R5) is governed by MaineDOT specifications per Section 12.

C. GENERAL

1. ~~Streets and Roads shall remove stumps and rocks over 6 inches in diameter from a depth not less than 18 inches below the finished top.~~
2. ~~All newly constructed Streets and Roads remain Private Roads until they are formally accepted as a Town Way per Section 6.G.~~
3. **Thoroughfares shall remove stumps and rocks over 6 inches in diameter from a depth not less than 18 inches below the finished top.**
4. **All newly constructed Thoroughfares remain Private Roads until they are formally accepted as a Town Way per Section 6.G.**

[unchanged table/figure omitted]

Article 3 Thoroughfares › 13. ADMINISTRATION › c. PERMITTING AUTHORITY

- c. General maintenance permits where required.
2. The Planning Board reviews and approves:
 - a. ~~Construction of new Streets and Roads under Section 6.~~
 - b. ~~Substantial reconstruction of existing Streets and Roads under Section 14.~~
 - c. **Construction of new Thoroughfares under Section 6.**
 - d. **Substantial reconstruction of existing Thoroughfares under Section 14.**
 - e. Reclassification petitions under Section 5.E.
3. The Road Commissioner reviews and certifies all construction-phase work.

Article 3 Thoroughfares › 13. ADMINISTRATION › h. WAIVERS

2. A departure from a Build-To Standard under Section 3.C.4 is processed as part of the application and is not a waiver under this Subsection. A waiver under this Subsection is required only to build below a stated minimum of the assigned Type, and no waiver may be granted from the safety-critical standards listed in Section 3.C.4.

14. NONCONFORMING STREETS & ROADS **THOROUGHFARES**

A. PURPOSE

1. To provide for the continued operation of existing ~~Streets and Roads~~ **Thoroughfares** that do not currently meet the standards of their assigned Type, and to specify the conditions under which conformity is required.

B. APPLICABILITY

1. Applies to all ~~Streets and Roads~~ **Thoroughfares** classified under Section 5 that do not currently meet one or more standards of their assigned Type as set forth on the Type's page in Section 2 or in Section 11 (Construction Standards).

C. CONTINUATION

1. A nonconforming Street or Road may continue to operate in its existing condition.
2. General maintenance—including patching, resealing, restriping, shoulder reshaping, and culvert replacement—is permitted without bringing the Street or Road into conformity.
3. A nonconforming Thoroughfare may continue to operate in its existing condition.
4. General maintenance—including patching, resealing, restriping, shoulder reshaping, and culvert replacement—is permitted without bringing the Thoroughfare into conformity.

D. SUBSTANTIAL RECONSTRUCTION

1. Substantial reconstruction of a nonconforming Street or Road Thoroughfare requires conformity with the standards of the assigned Type, except as follows:
 - a. Where the existing right-of-way precludes a Type Standard from being met without taking additional land, the standard may be modified by the Permitting Authority to the extent necessary to fit within the existing right-of-way.
 - b. The Code Enforcement Officer or Planning Board may require the reservation of a 20 ft wide easement at the end of a dead-end road, in line with the road, to provide for continuation of pedestrian traffic or utilities.
 - c. The Permitting Authority may require the reservation of a 50 ft wide easement at the end of a dead-end road, in line with the road, to provide for continuation of the road.
2. “Substantial reconstruction” is defined in the same manner as in the prior Newcastle Road, Driveway, and Entrance Ordinance, namely: improvements to a previously constructed Street or Road Thoroughfare, including but not limited to extensions to the length or width, the rip up and replacement of sub-surface road building materials for a length or section of the Street or Road Thoroughfare that goes beyond activities associated with General Maintenance, the addition of sidewalks or wholesale rebuilding of pre-existing sidewalks, or a change from one permanent road surfacing material to another such as from dirt to asphalt, asphalt to concrete, or asphalt to dirt.

E. RECLASSIFICATION TO RESOLVE NONCONFORMITY

1. Where a nonconforming Street or Road Thoroughfare cannot reasonably be brought into conformity with its assigned Type, a reclassification petition may be filed under Section 5.E to assign a Type that more accurately reflects the segment’s current and likely future character.

F. ACCEPTANCE OF A NONCONFORMING PRIVATE ROAD AS A TOWN WAY

Article 8 Administration › 12. SUBDIVISION › f. APPROVAL STANDARDS

1. The Planning Board must approve a Subdivision Plan application and issue findings of fact upon verifying consistency to the following:
 - a. The standards of this Code.
 - b. The standards of Article 3 Streets, Roads & Driveways Thoroughfares.
 - c. Pollution: The proposed subdivision will not result in undue water or air pollution. In making this determination, it will at least consider:
 - i. The elevation of the land above sea level and its relation to the flood plains;

Article 8 Administration › 13. MASTER PLAN › a. PURPOSE

1. To provide a development review process that applies to a conceptual plan coordinating the development of blocks, roads, civic space, and other neighborhood level design.
2. To show mandatory compliance standards for blocks, Street and Road Thoroughfare Types and cross-section configurations per Article 3, district mix, and building mix, as applicable.
3. To allow an applicant to gain conceptual-level approval for a project without preparing detailed site plans or architectural and engineering drawings for roads, civic spaces, lots, or buildings.

4. To authorize the Code Enforcement Office to accept applications for subsequent development review in accordance with this Code, as project phases and individual lots are built out.

Article 8 Administration › 13. MASTER PLAN › e. APPROVAL STANDARDS

- c. The adopted Comprehensive Plan of the Town of Newcastle.
 - d. Considerations indicated elsewhere in this Code for the required Master Plan approval.
2. At Master Plan approval, the Type and cross-section configuration of each ~~Street and Road~~Thoroughfare within the plan are fixed and govern subsequent project phases. A later phase may propose a different Type or cross-section configuration only by a revision of the Master Plan under Section 14.

F. COMPLIANCE

Article 9 Definitions

Road, Private: A road in fully private ownership over which no public access right exists; an Ownership Category under Article 3 Section 4.C. Independent of the road's ~~Street/Road~~Thoroughfare Type. Maintenance is the responsibility of the private owner or association.

Road, Public:

Article 9 Definitions › DEFINITIONS ADDED FOR ARTICLE 3 STREETS, ROADS & DRIVEWAYS

Cartway: The portion of a ~~Street or Road's~~Thoroughfare's right-of-way that is paved, graveled, or otherwise improved for vehicular travel, including travel lanes, on-street parking lanes (where present), and shoulders (where present). The cartway does not include sidewalks, planting strips, or the frontage zone.

Connector Road (R1):

Article 9 Definitions › DEFINITIONS ADDED FOR ARTICLE 3 STREETS, ROADS & DRIVEWAYS

Curb Return Radius: The radius of the curve at the corner of two intersecting ~~Streets or Roads;~~Thoroughfares, measured along the outside face of the curb or, where no curb is present, along the edge of the cartway. Calibrated by Type pair under Article 3 Section 9.

Driveway (*modified entry — supersedes prior definition above*):

Article 9 Definitions › DEFINITIONS ADDED FOR ARTICLE 3 STREETS, ROADS & DRIVEWAYS

Ownership Category: The statutory ownership and maintenance classification of a ~~Street or Road~~Thoroughfare under Article 3 Section 4, independent of its ~~Street/Road~~Thoroughfare Type. The four Ownership Categories are Town Way, Public Easement, Private Road, and State Highway.

Planting Strip: The portion of a ~~Street or Road's~~Thoroughfare's right-of-way located between the curb (or edge of cartway, where no curb is present) and the sidewalk (where present), or between the curb and the front lot line where no sidewalk is present. The planting strip typically contains street trees, grass, low plantings, and tree pits; it may also contain on-street furniture in the furnishing zone.

Provision Component:

Article 9 Definitions › DEFINITIONS ADDED FOR ARTICLE 3 STREETS, ROADS & DRIVEWAYS

State Highway: A ~~street or road~~thoroughfare owned and maintained by the State of Maine through the Maine Department of Transportation. US Route 1 within Newcastle is a State Highway. An Ownership Category under Article 3 Section 4.C. Subject to the coordination protocol in Article 3 Section 12.

Street: A thoroughfare classified under the Street family of Types (S1 Main Street, S2 Village Street, S3 Neighborhood Street, S4 Lane, S5 Alley) under Article 3 Section 2. Distinct from a Road in that pedestrian comfort is generally a primary design consideration.

Street/Road Type: The form-based classification assigned to a Street or Road under Article 3 Section 2, describing its character, dimensions, and design standards. Distinct from the Street or Road's Ownership Category. **Thoroughfare:** An umbrella term for any Street, Road, or Driveway. Includes all ten Thoroughfare Types (S1 through S5 and R1 through R5) plus the Driveway category.

Thoroughfare: An umbrella term for any Street, Road, or Driveway. Includes all ten Street/Road Types (S1 through S5 and R1 through R5) plus the Driveway category. **Thoroughfare Type:** The form-based classification assigned to a Thoroughfare under Article 3 Section 2, describing its character, dimensions, and design standards. Distinct from the Thoroughfare's Ownership Category.

Town Way: